

An Act

ENROLLED HOUSE
BILL NO. 2137

By: Stinson and Archer of the
House

and

Pugh of the Senate

An Act relating to criminal procedure; amending 22 O.S. 2021, Section 1175.8, which relates to the resumption of competency; requiring the Department of Mental Health and Substance Abuse Services to provide notification to certain parties when seeking to administer medication; providing for the filing of applications for court orders authorizing medication; requiring applications to indicate certain information; requiring hearings to be held within certain time frame; providing an exception; providing list of rights for persons subject to an order requiring the administration of medication; requiring petitioner to provide clear and convincing evidence in application; directing the court to make specific findings of fact; establishing time limitations for administering medications; providing construing provision; amending 51 O.S. 2021, Section 152, as last amended by Section 1, Chapter 314, O.S.L. 2025 (51 O.S. Supp. 2025, Section 152), which relates to The Governmental Tort Claims Act; modifying definitions; and providing an effective date.

SUBJECT: Criminal procedure

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 22 O.S. 2021, Section 1175.8, is amended to read as follows:

Section 1175.8. A. If the medical supervisor reports that the person appears to have achieved competency after a finding of incompetency, the court shall hold another competency hearing to

determine if the person has achieved competency. If competency has been achieved, the criminal proceedings shall be resumed.

B. If the Department of Mental Health and Substance Abuse Services or its designee wishes to administer medication, including psychotropic medication, to a person in custody under the provisions of subsection A of Section 1175.6a of this title and has reason to believe the person lacks the capacity to consent to or refuse medication or the person refuses to take the medication voluntarily, the Department or its designee shall notify the court, the prosecuting office that filed the criminal petition, and the attorney for the person. The prosecuting office or the Department or its designee may, on behalf of the state, file an application for an order authorizing medication for purposes of competency restoration with the court. Any such application shall also seek authorization to continue medication for purposes of maintaining the level of restoration while incarcerated following competency restoration.

C. An application seeking authorization of medication shall indicate:

1. If the treating physician of the person believes the person lacks the capacity to make a decision regarding administration of the medication and the reasons for that belief;

2. A summary of the individualized treatment plan of the person, including the class of medications to be potentially administered and the corresponding dosage ranges;

3. The diagnosis of the person made by the treating physician; and

4. The proposed method for administering the medication and, if the method is not customary, an explanation justifying the departure from the customary method.

D. The hearing on the application shall be held no later than thirty (30) days after the filing of the application, unless good cause is shown.

E. A person for whom an application for an order to authorize the administration of medication is filed is entitled to:

1. An attorney to represent the person at the hearing. If the person cannot afford an attorney, the court shall appoint an attorney;

2. Meet with the attorney as soon as practicable to prepare for the hearing;

3. Receive, as soon as practicable after the time the hearing is set, a copy of the application and written notice of the time, place, and date of the hearing;

4. Notice of the right to a hearing and right to the assistance of an attorney to prepare for the hearing;

5. Be present at the hearing;

6. Request from the court an independent expert; and

7. Notification at the conclusion of the hearing of the determination made by the court.

F. The administration of medication shall not be ordered unless the petitioning party proves by clear and convincing evidence that:

1. There exists an important state interest that justifies overriding the lack of consent by the person to the administration of medication;

2. Involuntary medication is substantially likely to render the person competent to stand trial and substantially unlikely to have side effects that will interfere significantly with the ability of the person to assist trial counsel;

3. Involuntary medication is necessary to further the interests of the state and any alternative, less intrusive treatments are not likely to achieve substantially the same results; and

4. The administration of the medication is in the best medical interest of the person in light of the medical condition of the person.

G. The court shall make specific findings of fact concerning:

1. Each consideration listed under the provisions of subsection F of this section;

2. The desires of the person regarding the proposed treatment;
and

3. The capacity of the person to consent to or refuse
medication.

H. An order for the administration of medications entered
following a hearing conducted pursuant to this section shall be
effective for the period of the current involuntary commitment order
and any interim period during which the person is awaiting trial or
a hearing on a new petition for involuntary treatment or involuntary
medication. The order shall specify all medications to be
potentially involuntarily administered and corresponding dosage
ranges.

I. Nothing in this section shall be construed to invalidate,
prohibit, or alter the administration of medication to a person
under other laws or regulations of this state.

SECTION 2. AMENDATORY 51 O.S. 2021, Section 152, as last
amended by Section 1, Chapter 314, O.S.L. 2025 (51 O.S. Supp. 2025,
Section 152), is amended to read as follows:

Section 152. As used in The Governmental Tort Claims Act:

1. "Action" means a proceeding in a court of competent
jurisdiction by which one party brings a suit against another;

2. "Agency" means any board, commission, committee, department
or other instrumentality or entity designated to act in behalf of
the state or a political subdivision;

3. "Charitable health care provider" means a person who is
licensed, certified, or otherwise authorized by the laws of this
state to administer health care in the ordinary course of business
or the practice of a profession and who provides care to a medically
indigent person, as defined in paragraph 9 of this section, with no
expectation of or acceptance of compensation of any kind;

4. "Claim" means any written demand presented by a claimant or
the claimant's authorized representative in accordance with The
Governmental Tort Claims Act to recover money from the state or
political subdivision as compensation for an act or omission of a
political subdivision or the state or an employee;

5. "Claimant" means the person or the person's authorized representative who files notice of a claim in accordance with The Governmental Tort Claims Act. Only the following persons and no others may be claimants:

- a. any person holding an interest in real or personal property which suffers a loss, provided that the claim of the person shall be aggregated with claims of all other persons holding an interest in the property and the claims of all other persons which are derivative of the loss, and that multiple claimants shall be considered a single claimant,
- b. the individual actually involved in the accident or occurrence who suffers a loss, provided that the individual shall aggregate in the claim the losses of all other persons which are derivative of the loss, or
- c. in the case of death, an administrator, special administrator or a personal representative who shall aggregate in the claim all losses of all persons which are derivative of the death;

6. "Community health care provider" means:

- a. a health care provider who volunteers services at a community health center that has been deemed by the U.S. Department of Health and Human Services as a federally qualified health center as defined by 42 U.S.C., Section 1396d(1)(2)(B),
- b. a health provider who provides services to an organization that has been deemed a federally qualified look-alike community health center, and
- c. a health care provider who provides services to a community health center that has made application to the U.S. Department of Health and Human Services for approval and deeming as a federally qualified look-alike community health center in compliance with federal application guidance, and has received comments from the U.S. Department of Health and Human Services as to the status of such application with the established intent of resubmitting a modified

application, or, if denied, a new application, no later than six (6) months from the date of the official notification from the U.S. Department of Health and Human Services requiring resubmission of a new application;

7. "Employee" means any person who is authorized to act ~~in~~ on behalf of a political subdivision or the state whether that person is acting on a permanent or temporary basis, with or without being compensated or on a full-time or part-time basis.

a. Employee also includes:

- (1) all elected or appointed officers, members of governing bodies and other persons designated to act for an agency or political subdivision, but the term does not mean a person or other legal entity while acting in the capacity of an independent contractor or an employee of an independent contractor,
- (2) from September 1, 1991, through June 30, 1996, licensed physicians, licensed osteopathic physicians and Certified Nurse-Midwives providing prenatal, delivery or infant care services to State Department of Health clients pursuant to a contract entered into with the State Department of Health in accordance with paragraph 3 of subsection C of Section 1-106 of Title 63 of the Oklahoma Statutes but only insofar as services authorized by and in conformity with the terms of the contract and the requirements of Section 1-233 of Title 63 of the Oklahoma Statutes, and
- (3) any volunteer, full-time or part-time firefighter when performing duties for a fire department provided for in subparagraph j of paragraph 12 of this section.

b. For the purposes of The Governmental Tort Claims Act, the following are employees of this state, regardless of the place in this state where duties as employees are performed:

- (1) physicians acting in an administrative capacity,

- (2) resident physicians and resident interns participating in a graduate medical education program of the University of Oklahoma Health Sciences Center, the Oklahoma State University College of Osteopathic Medicine, a public trust created pursuant to Section 3224 of Title 63 of the Oklahoma Statutes and any sole member not-for-profit corporation of the public trust and any sole member not-for-profit subsidiary of such corporation, or the Department of Mental Health and Substance Abuse Services,
- (3) faculty members and staff of the University of Oklahoma Health Sciences Center, the Oklahoma State University College of Osteopathic Medicine, or a public trust created pursuant to Section 3224 of Title 63 of the Oklahoma Statutes and any sole member not-for-profit corporation of the public trust and any sole member not-for-profit subsidiary of such corporation, while engaged in teaching duties,
- (4) physicians who practice medicine or act in an administrative capacity as an employee of an agency of this state,
- (5) physicians who provide medical care to inmates pursuant to a contract with the Department of Corrections,
- (6) any person who is licensed to practice medicine pursuant to Title 59 of the Oklahoma Statutes, who is under an administrative professional services contract with the Oklahoma Health Care Authority under the auspices of the Oklahoma Health Care Authority Chief Medical Officer, and who is limited to performing administrative duties such as professional guidance for medical reviews, reimbursement rates, service utilization, health care delivery and benefit design for the Oklahoma Health Care Authority, only while acting within the scope of such contract,

- (7) licensed medical professionals, health care companies, and employees of health care companies under contract with city, county, or state entities who provide medical care to inmates or detainees in the custody or control of law enforcement agencies,
- (8) licensed mental health professionals as defined in Sections 1-103 and 5-502 of Title 43A of the Oklahoma Statutes, who are conducting initial examinations of individuals for the purpose of determining whether an individual meets the criteria for emergency detention as part of a contract with the Department of Mental Health and Substance Abuse Services, and
- (9) licensed mental health professionals as defined in Sections 1-103 and 5-502 of Title 43A of the Oklahoma Statutes, who are providing mental health or substance abuse treatment services under a professional services contract with the Department of Mental Health and Substance Abuse Services and are providing such treatment services at a state-operated facility.

Physician faculty members and physician staff of the University of Oklahoma Health Sciences Center, the Oklahoma State University College of Osteopathic Medicine, or a public trust created pursuant to Section 3224 of Title 63 of the Oklahoma Statutes and any sole member not-for-profit corporation of the public trust and any sole member not-for-profit subsidiary of such corporation not acting in an administrative capacity or engaged in teaching duties are not employees or agents of the state.

- c. For the purposes of The Governmental Tort Claims Act, employee shall include independent contractors and employees of independent contractors while actively engaged in the transport of individuals in need of initial assessment, emergency detention, or protective custody as authorized by Section 1-110 of Title 43A of the Oklahoma Statutes.

- d. Except as provided in subparagraph b of this paragraph, in no event shall the state be held liable for the tortious conduct of any physician, resident physician or intern while practicing medicine or providing medical treatment to patients.
- e. For purposes of The Governmental Tort Claims Act, members of the state military forces on state active duty orders or on Title 32 active duty orders are employees of this state, regardless of the place, within or outside this state, where their duties as employees are performed;

8. "Loss" means death or injury to the body or rights of a person or damage to real or personal property or rights therein;

9. "Medically indigent" means a person requiring medically necessary hospital or other health care services for the person or the dependents of the person who has no public or private third-party coverage, and whose personal resources are insufficient to provide for needed health care;

10. "Municipality" means any incorporated city or town, and all institutions, agencies or instrumentalities of a municipality;

11. "Occurrence" means a loss arising out of an accident or event or a continuous or repeated exposure to substantially the same general harmful conditions. All losses arising out of an accident or event or a continuous or repeated exposure to substantially the same general harmful conditions shall be deemed to have arisen out of one occurrence;

12. "Political subdivision" means:

- a. a municipality,
- b. a school district, including, but not limited to, a technology center school district established pursuant to Section 4410, 4411, 4420 or 4420.1 of Title 70 of the Oklahoma Statutes, or a public library as defined pursuant to Section 1-104 of Title 65 of the Oklahoma Statutes,
- c. a county,

- d. a public trust where the sole beneficiary or beneficiaries are a city, town, school district or county. For purposes of The Governmental Tort Claims Act, a public trust shall include:
 - (1) a municipal hospital created pursuant to Sections 30-101 through 30-109 of Title 11 of the Oklahoma Statutes, a county hospital created pursuant to Sections 781 through 796 of Title 19 of the Oklahoma Statutes, or is created pursuant to a joint agreement between such governing authorities, that is operated for the public benefit by a public trust created pursuant to Sections 176 through 180.4 of Title 60 of the Oklahoma Statutes and managed by a governing board appointed or elected by the municipality, county, or both, who exercises control of the hospital, subject to the approval of the governing body of the municipality, county, or both,
 - (2) a public trust created pursuant to Sections 176 through 180.4 of Title 60 of the Oklahoma Statutes after January 1, 2009, the primary purpose of which is to own, manage, or operate a public acute care hospital in this state that serves as a teaching hospital for a medical residency program provided by a college of osteopathic medicine and provides care to indigent persons, and
 - (3) a corporation in which all of the capital stock is owned, or a limited liability company in which all of the member interest is owned, by a public trust,
- e. for the purposes of The Governmental Tort Claims Act only, a housing authority created pursuant to the provisions of the Oklahoma Housing Authorities Act,
- f. for the purposes of The Governmental Tort Claims Act only, corporations organized not for profit pursuant to the provisions of the Oklahoma General Corporation Act for the primary purpose of developing and

providing rural water supply and sewage disposal facilities to serve rural residents,

- g. for the purposes of The Governmental Tort Claims Act only, districts formed pursuant to the Rural Water, Sewer, Gas and Solid Waste Management Districts Act,
- h. for the purposes of The Governmental Tort Claims Act only, master conservancy districts formed pursuant to the Conservancy Act of Oklahoma,
- i. for the purposes of The Governmental Tort Claims Act only, a fire protection district created pursuant to the provisions of Section 901.1 et seq. of Title 19 of the Oklahoma Statutes,
- j. for the purposes of The Governmental Tort Claims Act only, a benevolent or charitable corporate volunteer or full-time fire department for an unincorporated area created pursuant to the provisions of Section 592 et seq. of Title 18 of the Oklahoma Statutes,
- k. for purposes of The Governmental Tort Claims Act only, an emergency services provider rendering services pursuant to an existing contract between the emergency services provider and the State Department of Health. Provided, however, that the acquisition of commercial liability insurance covering the activities of such emergency services provider performed within this state shall not operate as a waiver of any of the limitations, immunities or defenses provided for political subdivisions pursuant to the terms of The Governmental Tort Claims Act,
- l. for purposes of The Governmental Tort Claims Act only, a conservation district created pursuant to the provisions of the Conservation District Act,
- m. for purposes of The Governmental Tort Claims Act, districts formed pursuant to the Oklahoma Irrigation District Act,
- n. for purposes of The Governmental Tort Claims Act only, any community action agency established pursuant to

Sections 5035 through 5040.1 of Title 74 of the Oklahoma Statutes,

- o. for purposes of The Governmental Tort Claims Act only, any organization that is designated as a youth services agency, pursuant to Section 2-7-306 of Title 10A of the Oklahoma Statutes,
- p. for purposes of The Governmental Tort Claims Act only, any judge presiding over a drug court, as defined by Section 471.1 of Title 22 of the Oklahoma Statutes,
- q. for purposes of The Governmental Tort Claims Act only, any child-placing agency licensed by this state to place children in foster family homes,
- r. for purposes of The Governmental Tort Claims Act only, a circuit engineering district created pursuant to Section 687.1 of Title 69 of the Oklahoma Statutes,
- s. for purposes of The Governmental Tort Claims Act only, a substate planning district, regional council of government or other entity created pursuant to Section 1001 et seq. of Title 74 of the Oklahoma Statutes, and
- t. for purposes of The Governmental Tort Claims Act only, a regional transportation authority created pursuant to Section 1370.7 of Title 68 of the Oklahoma Statutes including its contract operator and any railroad operating in interstate commerce that sells a property interest or provides services to a regional transportation authority or allows the authority to use the property or tracks of the railroad for the provision of public passenger rail service to the extent claims against the contract operator or railroad arise out of or are related to or in connection with such property interest, services or operation of the public passenger rail service. Provided, the acquisition of commercial liability insurance to cover the activities of the regional transportation authority, contract operator or railroad shall not operate as a waiver of any liabilities, immunities or defenses provided pursuant to the provisions of The Governmental Tort Claims Act,

and all their institutions, instrumentalities or agencies;

13. "Scope of employment" means performance by an employee acting in good faith within the duties of the employee's office or employment or of tasks lawfully assigned by a competent authority including the operation or use of an agency vehicle or equipment with actual or implied consent of the supervisor of the employee, but shall not include corruption or fraud;

14. "State" means the State of Oklahoma or any office, department, agency, authority, commission, board, institution, hospital, college, university, public trust created pursuant to Title 60 of the Oklahoma Statutes of which the State of Oklahoma is the beneficiary, or other instrumentality thereof;

15. "State active duty" shall be defined in accordance with Section 801 of Title 44 of the Oklahoma Statutes;

16. "State military forces" shall be defined in accordance with Section 801 of Title 44 of the Oklahoma Statutes;

17. "Title 32 active duty" shall be defined in accordance with Section 801 of Title 44 of the Oklahoma Statutes; and

18. "Tort" means a legal wrong, independent of contract, involving violation of a duty imposed by general law, statute, the Oklahoma Constitution, or otherwise, resulting in a loss to any person, association or corporation as the proximate result of an act or omission of a political subdivision or the state or an employee acting within the scope of employment; provided, however, a tort shall not include a claim for inverse condemnation.

SECTION 3. This act shall become effective November 1, 2026.

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 5th day of May, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____